

Bhagwati Prasad v. State of U.P.

Allahabad High Court · Division Bench · 14 June 2022 · Writ-C No. 17000 of 2022 · WRIT - C No. - 17000 of 2022 · **Recovery citation not interfered; liberty to OTS or Clause 6.14 instalments.**

HEADNOTE

A Division Bench declined to quash a recovery citation for electricity dues and disposed of the writ with liberty to the consumers either to avail a then-prevailing OTS scheme or to move an independent application for instalment payment of the sum due under Clause 6.14 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Bhagwati Prasad and another petitioned the Allahabad High Court to quash a recovery citation dated 28 December 2021 / 12 January 2022 issued for recovery of electricity dues. Counsel submitted that the petitioners were ready to pay in easy instalments. Counsel for the Electricity Department stated that an OTS scheme was then in force, that the petitioners could avail it, and that if they approached the department under the scheme their request for instalment and waiver would be considered sympathetically.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment payment of electricity dues

HOLDING

Without interfering with a recovery citation for electricity dues, the Court disposed of the writ with liberty to the consumers to avail a prevailing OTS scheme, if so advised, or else to move an independent application for payment of the sum due in instalments as per Clause 6.14 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court did not quash the recovery citation and instead relegated the consumers to either a prevailing OTS scheme or an independent Clause 6.14 application for instalment payment of electricity dues. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 28.12.2021/12.1.2022

The Court expressly declined to interfere with the citation and did not examine its legality. ¶ 1

NOT DECIDED — ENTITLEMENT TO INSTALMENTS UNDER CLAUSE 6.14 OR TO OTS WAIVER

Only liberty to apply was granted; no merits direction on instalments or waiver. ¶ 1